

Court No. - 21

Case :- WRIT - C No. - 183 of 2023

Petitioner :- Manoj Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

Learned counsel for the petitioner submits that without there being any final assessment order, respondents are proceeding to recover the amount in question.

Learned counsel for the respondent-Corporation seeks time to obtain instruction in this behalf.

List as fresh on 13th January, 2023.

Order Date :- 6.1.2023

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(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)

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Hon'ble Manoj Kumar Gupta,J.

Hon'ble Ajit Singh,J.

Learned counsel for the respondents prays for and is granted three days time to seek instructions in the matter.

List this case as fresh on 18.1.2023.

Order Date :- 13.1.2023

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Court No. - 21

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Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shailesh Kumar Srivastava

Counsel for Respondent :- C.S.C.,Kartikeya Saran

Hon'ble Manoj Kumar Gupta,J.

Hon'ble Vikram D. Chauhan,J.

The instant petition has been filed challenging the recovery notices dated 30.04.2022 and 13.07.2022 and the recovery certificate issued by respondent no. 4 dated 18.11.2022 for recovery of electricity dues in a case of theft of electricity.

Learned counsel for the respondent-Corporation has placed on record the final assessment order dated 16.11.2021. However, he is not in a position to show that how the orders of provisional assessment and final assessment were served on the petitioner. He submits that in case the petitioner files any objection, the Department will decide the objections in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

A complete set of documents including copy of final assessment order has been provided to learned counsel for the petitioner in Court.

In our opinion, interest of justice would be served, in case petitioner is permitted to file objection against the final assessment order treating it to be provisional assessment and in permitting the respondents to proceed further in the matter in accordance with the procedure prescribed under the Electricity Supply Code, 2005.

Accordingly, we dispose of the instant petition as follows:

(a) The petitioner will have 15 days time to file objection treating the final assessment as provisional assessment.

(b) The respondents will proceed thereafter as per the procedure prescribed under the Electricity Supply Code, 2005.

(c) In case, the petitioner fails to file objection within 15 days, it shall be open to the respondents to proceed further in the matter without waiting for the objection and pass a speaking order as

contemplated under the Electricity Supply Code, 2005.

(d) The recovery certificate dated 18.11.2022 shall stand quashed.

(e) Dependent on the decision which is taken by the respondents in pursuance of the instant order, it shall be open to them to take further steps in accordance with law.

Order Date :- 18.1.2023

Sumit Kumar

(Vikram D. Chauhan,J.) (Manoj Kumar Gupta,J.)